

Shikha Kanwar vs Rajat Kanwar on 29 July, 2024

Author: Prathiba M. Singh

Bench: Prathiba M. Singh, Amit Sharma

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IN THE HIGH COURT OF DELHI AT NEW DELHI

Date of decision:-

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CONT.CAS.(CRL) 15/2023

SHIKHA KANWAR

Through:

Ms. Rosemary Raju, Mr. Thakur & Mr. Aadarsh K (M-8076339978) along w in person.

versus

RAJAT KANWAR

Through:

Mr. Sanjay Dewan, Adv. Respondent in person.

CORAM:

JUSTICE PRATHIBA M. SINGH

JUSTICE AMIT SHARMA

JUDGMENT

Prathiba M. Singh, J.

1. This hearing has been done through hybrid mode.

2. The present criminal contempt arises out of an order dated 15 th September, 2023 in which the Contemnor is stated to have created an unpleasant scene in the Court and made reckless allegations against the Id. Counsel for the Petitioner as well as against the Court. The Petitioner is the wife and the Respondent is the husband. They have an ongoing matrimonial dispute and there are proceedings pending before the Mahila Court as also before the Family Court, where several orders have been passed.

3. In the present petition, however, the Petitioner/wife has approached this Court for taking action for criminal contempt against the Respondent/husband in view of the proceedings that had transpired on 15 th September, 2023. The entire order is relevant and the same is extracted below:

"Counsel for respondent has filed an application to take on record reply to application U/s 24 & 26 HMA along with documents and another application U/O 11 Rule 12 CPC seeking directions to petitioner to produce bank statements and original documents. Copy supplied. She has also filed copy of bank statement of Oriental Bank of Commerce & Punjab & Sindh Bank of Respondent w.e.f 2018-2021.

Counsel for petitioner has filed the documents regarding the shareholding of respondent in various companies. She submits that she wishes to file reply to application filed on behalf of respondent for taking on record reply to application u/s 24 & 26 HMA. She further submits that respondent has not filed the upto date statement of account and has requested directions to respondent to file upto date statement of account. She further submits that respondent has not filed his ITRs with balance sheets. She further submits that respondent also got his accounts in SBI and HDFC Bank however, the bank statements of said accounts have not been filed.

Ld. Counsel for respondent submits that her client is on the way and he might have the ITRs.

Ld. Counsel for petitioner has insisted for arguments on application U/s 24 HMA since the same is pending since the last two years.

Be awaited and recalled at 2.00 p.m. At this stage.

Pr: Petitioner with counsel Mr. Prabhjit Jauhar & Ms. Rosemary Respondent with Ld. counsel Ms. Liza M.Baruah.

Arguments partly advanced on application U/S 24 HMA. Both the parties are directed to file their latest bank statement of account within a week after exchanging the copies thereof.

The respondent is also directed to file his ITRs along with balance sheets within a week. Both the parties are directed to provide the brief details of last audited balance sheet of their companies to indicate profit and loss of companies in which they are in business.

Ld. Counsel for petitioner submits that petitioner is not income tax assessee and whatever ITRs were filed earlier, were filed by her husband which is mentioned in her income affidavit.

Put up for further arguments on 10/10/2023.

Both the parties are also directed to file their written arguments within two weeks after exchanging the copies thereof.

(SUKHVINDER KAUR) PRINCIPAL JUDGE (SOUTH EAST) FAMILY COURTS, SAKET, NEW DELHI At this stage, File taken up today again Present : None for parties During course of proceedings, respondent had created ruckus by making uncalled remarks against Mr. Prabhjit Jauhar calling him tout, dalla, etc. He also uttered that Mr. Prabhjit Jauhar has also extorted Rs. 14 lakhs in the name of Court for getting favourable orders. The respondent was forced to leave the court room by

his counsel. Though, this court continued to hear the arguments on the verbal apology tendered by the counsel for the respondent on behalf of her client and joint requests made by the counsels for both the parties, however this court feels that by making the remarks, the respondent indirectly casts the aspersions on the Court. Hence, I do not deem it proper to try this case. Further, considering that the allegations made against the counsel for the petitioner are serious, copy of order be sent to the President, Bar Council of Delhi with the request to make an enquiry into the remarks made by the respondent against the counsel for petitioner.

The matter is transferred to the court of Sh. Kuldeep Narayan, Judge, Family Court-02, South-East, Saket, New Delhi.

Both the parties are directed to appear before the transferee court on 18.09.2023 at 02:00 P.M. Reader is directed to telephonically inform both the counsels about the transfer of the case.

Next date of hearing i.e. 10.10.2023 stands canceled."

4. As can be seen from the above order, in the Court room, during the course of proceedings itself, the Respondent has used abusive language and made allegations that the Counsel for the Petitioner had engaged in extortion as also interfered with the Court proceedings by calling the Counsel by various unpleasant names.

5. The concerned Principal Judge, Family Court (South East) was in fact compelled to transfer the matter from her Court to some other Court in view of the misbehaviour of the Respondent. Aspersions were cast even on the Court and the Family Court Judge. The Court then sent the matter to the President, Bar Council of Delhi to enquire into the remarks made by the Respondent.

6. In this petition, vide order dated 2nd November, 2023, notice was issued to the Contemnor to show cause as to why contempt action ought not to be taken. A reply affidavit dated 6th February, 2024 was filed by the Contemnor and he took the stand that he has the proof to corroborate the claims made in paragraph 11 of the reply affidavit filed by him and sought time to file an additional affidavit. An additional affidavit dated 18th April, 2024 was thereafter filed by one Mr. Samant Sikka, whom the Respondent claims to be common friend of himself and the Petitioner. Thus, the Respondent has filed two affidavits and one affidavit has been filed by a common friend - Mr. Sikka, who has deposed that he had witnessed some incidents in the exhibition which was put on by the Petitioner.

7. On 5th July, 2024, this Court, after hearing the parties, referred the matter to mediation and also directed appointment of a Counsellor for bringing about some resolution between the parties including the two children and the father/Respondent. On the said date, the Respondent had agreed to pay the arrears of maintenance of Rs.15 lakhs as fixed by the Ld. Metropolitan Magistrate, Mahila Court, Saket Court, Delhi and further directions were issued for also identifying a property which could be taken on rent by the Respondent. The directions given on 5th July, 2024 by this Court, are

extracted below:

"3. The Court has interacted with the parties as well as with both the children in the Chamber. With considerable difficulty and the intervention of the Counsels, some initial common ground, attempting to an overall settlement, is being achieved. Based on the submissions made and as broadly agreed, the following directions are accordingly issued:-

(i) The Respondent/Contemnor shall bring a demand draft for a sum of Rs. 15,00,000/- towards all the arrears of maintenance fixed by the Ld. Metropolitan Magistrate, Mahila Court, Saket Court, Delhi, which are due from February 2022. The said amount shall be tendered in the name of the Petitioner-Shikha Kanwar on the next date of hearing.

(ii) The Respondent/Contemnor as also the Petitioner and the two children shall undergo counselling sessions under a trained counsellor in Delhi High Court Mediation and Conciliation Centre. Mrs. Veena Ralli, shall nominate an experienced Counsellor for holding these sessions. It is directed that at least five sessions shall be conducted by the next date of hearing. The First date for such counselling sessions before the Mediation Centre is 10th July, 2024 at 04:00 PM.

(iii) The entire school fees arrears for the CBSE course, if any, shall be cleared by the Respondent/Contemnor before the next date of hearing. If the children are now being enrolled in the IGCSE Board, then let a chart be placed on record reflecting the difference in school fees in both the courses.

(iv) The Respondent/Contemnor shall identify a few options of a minimum 3BHK flat for taking on rent in Defence Colony, where the Petitioner and the children can reside, for which he undertakes to pay the monthly rent, working towards an overall settlement. Accordingly, let the Respondent show some flats/property/floor of a residential building in Defence Colony, to the Petitioner by the next date of hearing. If any particular property is acceptable to the Petitioner the remaining terms shall be decided on the next date of hearing.

(v) The Petitioner and the children shall not leave the country without the prior permission of this Court."

8. Today, the Respondent has appeared in Court.

9. Insofar as the first direction of the demand draft of Rs.15 lakhs is concerned, Mr. Dewan, Id. Counsel for the Respondent submits that the Contemnor has brought a cheque of Rs.15 lakhs. However, while the statement was being made by the Id. Counsel, the Contemnor intervened and stated that the said cheque would not be encashed as he does not have sufficient funds. This is despite the fact that the direction which was issued for payment of Rs. 15 lakhs was with the

agreement of the Respondent himself.

10. Insofar as the counselling sessions are concerned, the Mediation Centre has sent a report of the Counsellor which shows that some positive development and possibility of the children continuing to meet the father. However, the progress has been slow.

11. With respect to the third direction qua school fee is concerned, the Petitioner has placed on record a chart showing the differences between the fee for the CBSE course and the IGSCCE course.

12. Regarding the property which was to be shown in Defence Colony is concerned, as per the Petitioner, the Respondent did not send any message to her as to when the property was to be shown. This is disputed by the Respondent, who states that he had sent a message for a meeting and that he was waiting at the property which was identified by him.

13. Insofar as the reply to the show cause which was issued is concerned, Mr. Dewan has taken the Court through the three affidavits which have been filed on behalf of the Respondent. The Respondent's stand is that the Id. Counsel for the Petitioner - Mr. Jauhar had demanded the money in order to settle the matter and in order for him to even meet the children. The second allegation is that the said Counsel for the Petitioner allegedly took money from the Petitioner for obtaining a favourable outcome from the Court. The handing over of the amount is claimed to have been witnessed by Mr. Sikka.

14. The Court has perused all the three affidavits. It is clear from a reading of the said three affidavits that the allegation of the Contemnor/Respondent is that the Counsel for the Petitioner had demanded money from him to settle the dispute. If that was the position, the proper course of action for the Respondent/Contemnor was to approach the concerned Court or the concerned regulatory body such as the Bar Council for appropriate action. If the Respondent had any grievance against the Counsel, the proper course of action of filing a complaint ought to have been adopted. It is completely impermissible for the Respondent to hurl abuses in Court during proceedings. There was no occasion for the Respondent to cause a commotion in the Court and demean the proceedings before the Court by using abusive language in the Court, not just against the Counsel for the Petitioner but making aspersions even against the Court.

15. The exasperation of the Id. Judge in the Family Court is quite clear from the fact that the Id. Judge had to even transfer the matter from her Court to a different Court. As has been recorded in the order dated 15th September, 2023, the language which has been used by the Respondent in the Court is completely uncalled for and impermissible.

16. Despite previous incidents and a police complaint, the Respondent's conduct has continued unabated. The petition, submissions and the Respondent's behaviour in this Court have highlighted the Respondent's contemptuous behaviour, which interferes with the administration of justice. It is incumbent upon the Courts to check such actions and behaviour of the parties with a firm hand which otherwise it will have pernicious consequences.

17. Moreover, the Respondent in his conduct even before us shows that he does not abide by or pay any heed to the orders passed by this Court. Even after having agreed to pay the sum of Rs.15 lakhs, today, on the face of the Court, the Respondent has stated that even if he gives the cheque, the same would not be encashed and the cheque would bounce back.

18. This conduct of the Respondent is completely reprehensible and cannot be tolerated by any Court, let alone the Family Court or the Division Bench of the High Court.

19. The manner in which the Respondent has behaved clearly constitutes criminal contempt on the face of the Court, as it leads to scandalising the Court and interfering with the course of justice and in the judicial proceedings. The behaviour of the Respondent is clearly contemptuous. The Supreme Court in *Ram Niranjn Roy vs. State of Bihar and Ors.* [(2014) 12 SCC 11], observed as under:

"14. In *Pritam Pal v. High Court of M.P.*, while dealing with the nature and scope of the power conferred upon this Court and the High Court, being courts of record under Articles 129 and 215 of the Constitution of India respectively, this Court observed that the said power is an inherent power under which the Supreme Court and the High Court can deal with contempt of itself. The jurisdiction vested is a special one not derived from any other statute but derived only from Articles 129 and 215. This Court further clarified that the constitutionally vested right cannot be either abridged, abrogated or cut down by legislation including the Contempt of Courts Act.

15. In *Leila David* this Court has discussed what is contempt in the face of the Court. In this case, the petitioners made contumacious allegations in the writ petition and supporting affidavits. Notices were issued to them as to why contempt proceedings should not be issued against them. The hearing commenced. The writ petitioners disrupted the proceedings by using very offensive, intemperate and abusive language at a high pitch. One of the petitioners stated that the Judges should be jailed by initiating proceedings against them and threw footwear at the Judges. The petitioners stood by what they had said and done in the Court. One of the learned Judges felt that there was no need to issue notice to the petitioners and held them guilty of criminal contempt of the court. The other learned Judge observed that the mandate of Section 14 of the Contempt of Courts Act, 1971 must be followed before sending the contemnors to jail. The question was, therefore, whether the petitioners were entitled to any opportunity of hearing. The matter was thereafter placed before a three-Judge Bench. The three-Judge Bench resolved the difference of opinion and observed as under: (SCC p. 346, para 35).

"35. Section 14 of the Contempt of Courts Act no doubt contemplates issuance of notice and an opportunity to the contemnors to answer the charges in the notice to satisfy the principles of natural justice. However, where an incident of the instant nature takes place within the presence and sight of the learned Judges, the same amounts to contempt in the face of the Court and is required to be dealt with at the time of the incident itself. This is necessary for the dignity and majesty of the courts

to be maintained. When an object, such as a footwear, is thrown at the Presiding Officer in a court proceeding, the object is not to merely scandalise or humiliate the Judge, but to scandalise the institution itself and thereby lower its dignity in the eyes of the public."

16. Thus, when contempt is committed in the face of the High Court or the Supreme Court to scandalise or humiliate the Judge, instant action may be necessary. If the courts do not deal with such contempt with strong hand, that may result in scandalising the institution thereby lowering its dignity in the eyes of the public. The courts exist for the people. The courts cherish the faith reposed in them by people. To prevent erosion of that faith, contempt committed in the face of the court need a strict treatment. The appellant, as observed by the High Court was not remorseful. He did not file any affidavit tendering apology nor did he orally tell the High Court that he was remorseful and he wanted to tender apology. Even in this Court he has not tendered apology. Therefore, since the contempt was gross and it was committed in the face of the High Court, the learned Judges had to take immediate action to maintain honour and dignity of the High Court. There was no question of giving the appellant any opportunity to make his defence. This submission of the appellant must, therefore, be rejected.

17. In this Court also the appellant's behaviour is far from satisfactory. He told us that he had filed an application for bail in the High Court, but the High Court did not consider it. The bail application attached at Annexure A-6 to the petition is unsigned, supported by unsigned affidavit bearing no name of the lawyer. We have gone through the entire record the tampering of the impugned order. The appellant has not filed the true copy of the impugned order. The first sentence of Para 4 of the copy of the impugned order filed in this Court reads as under:

"The intervenor who presents himself in person otherwise a police officer didn't shout at the Court that he is an intervenor in this case.."

However, in the original impugned order the said sentence does not have the words "didn't shout". It reads as under: "the intervenor who presents himself in person otherwise a police officer shouted at the Court that he is an intervenor in this case....." Thus, the words "didn't shout" have replaced the word "shouted". When we asked for an explanation, the appellant stated that there is no tampering, but it is merely a typing error. We refuse to accept this explanation. In this case, by replacing the word "shouted" by the words "didn't shout" the appellant has changed the entire meaning of the sentence to suit his case that he did not shout in the Court. Thus, he is guilty of tampering with the High Court's order and filing it in this Court. This would, in our opinion, be criminal contempt as defined by Section 2(c) of the Contempt of Courts Act, 1971. There is abundance of judgments of this Court on this issue. This Court has taken a strict view of such conduct.

18. We may usefully refer to Chandra Shashi v. Anil Kumar Verma where in a transfer petition the contemnor had filed a forged experience certificate purportedly issued by the Principal of a college from Nagpur. The principal filed an affidavit stating that the said certificate is forged. This Court observed that an act which interferes or tends to interfere or obstructs or tends to obstruct the

administration of justice would be criminal contempt as defined in Section 2(c) of the Contempt of Courts Act, 1971. This Court further observed that if recourse to falsehood is taken with oblique motive, the same would definitely hinder, hamper or impede the even flow of justice and would prevent the courts from performing their legal duties as they are supposed to do. The contemnor was, therefore, suitably sentenced. "

20. In view of the above decision of Supreme Court, it is clearly laid down that the, that immediate action is warranted for contempt committed in the face of the Court to maintain its dignity, noting that failure to do so would lower the Court's dignity in public eyes. Additionally, any altercation of the Court records, as in the Appellant's case therein, constitutes criminal contempt under Section 2(c) of the Contempt of Courts Act, 1971, warranting strict judicial response.

21. In view of the circumstances of the case as also the judicial precedents, the Respondent is clearly guilty of criminal contempt as per the Contempt of Courts Act, 1971 and it is ordered accordingly.

22. List for hearing on sentence on 12th August, 2024.

PRATHIBA M. SINGH JUDGE AMIT SHARMA JUDGE JULY 29, 2024
Rahul/Pc/bh (corrected & released on 01st August, 2024)